Alabama Rules of Criminal Procedure

Rule 11. Incompetency and mental examinations.

Rule 11.9. Inapplicability to district and municipal courts.

Rule 11 does not apply to proceedings in district or municipal courts.

[Amended 10-1-96.]

Committee Comments to Rule 11.9 as Amended Effective October 1, 1996

Because proceedings in district and municipal courts are conducted without a jury and with the right to a trial by jury available on appeal for trial de novo in the circuit court, and in recognition of the defendant's right to have a jury determine the question of competency to stand trial, the procedure established by Rule 11 is restricted to the circuit court.